

The Trial of the Seven Bishops. 423

Now, Gentlemen, the Matter of it is before you ; you are to consider of it, and it is worth your Consideration ; they tell his Majesty, It is not out of averfeness to pay all due Obedience to the King, nor out of a want of Tendernefs to their dissenting Fellow-Subjects, that made them not perform the Command imposed upon them ; but they say, That because they do conceive, that the thing that was Comanded them was againft the Law of the Land, therefore they do defire his Majesty, that he would be pleased to forbear to infift upon it, that they fhould perform that Command which they take to be Illegal.

Gentlemen, we muft confider what they fay is Illegal in it ; they fay, they apprehend the Declaration is Illegal, because it is founded upon a Dispensing Power, which the King claims, to difpenfe with the Laws concerning Ecclefiaftical Affairs.

Gentlemen, I do not remember in any Cafe in all our Law, and I have taken fome Pains upon this Occafion to look into it, that there is any fuch Power in the King, and the Cafe muft turn upon that, in fhort ; If there be no fuch Dispensing Power in the King, then that can be no Libel which they prefented to the King, which fays, that the Declaration, being founded upon fuch a pretended Power, is Illegal.

Now, Gentlemen, this is a Dispensation with a Witnefs ! it amounts to an Abrogation and utter Repeal of all the Laws ; for I can fee no difference, nor know of none in Law, be-